

25STCV38414 25STCV38414

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-07-14

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Decedent

was allegedly fatally stabbed in the neck while a patron at Defendant's 7-Eleven.

Plaintiffs move to compel responses to form interrogatories, set one,
from Defendant Megdal
Silver Lake, LLC, and for the imposition of sanctions.

TENTATIVE RULING

Plaintiffs Ninoska Rodriguez, individually and as the
Successor-in-Interest to decedent Omar Evenor Rodriguez, deceased, et al.'s motion
to compel responses to form interrogatories propounded upon Defendant Megdal
Silver Lake, LLC is MOOT. Defendant has served verified responses. (Declaration
of Michael McGaughey, ¶ 9; Exh. 1.)

If Plaintiffs desire further responses, they may bring a motion to
compel further responses. If Defendant
desires relief from waiver of objections, Defendant must bring a
separately-noticed motion pursuant to Code
Civ. Proc. § 2030.290(a).

Plaintiff's request for sanctions against
Defendant Megdal Silver Lake, LLC only is GRANTED[1]
in the reduced amount of \$810 for 1.5 hours at \$500/hour plus a \$60 filing fee,
which is the reasonable amount of attorney's fees in connection with a motion
to compel original responses. Defendant has not demonstrated that it acted with
substantial justification nor that the imposition of sanctions are unjust (Code
Civ. Proc. § 2030.290(c)), because Defendant is deemed to have knowledge of the

discovery that was served upon the agent for service by way of imputed knowledge. (O'Riordan v. Federal Kemper Life Assurance Co. (2005) 36 Cal.4th 281, 288-89.)

[1]

The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules Court, Rule 3.1348(a).)